

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 14
JUDICIAL OFFICER: ATHANASIOU, KIRK
HEARING DATE: 08/11/2026

For matters where an appearance is required, the parties should appear by Zoom unless told to appear by another method. For all other matters, if argument is requested appearances may be in person or by Zoom.

Please email Dept14@contracosta.courts.ca.gov and opposing counsel by 4:00 p.m. if oral argument is requested, the requesting party shall specify the issues to be argued.

Zoom hearing information

<https://contracosta-courts-ca.zoomgov.com/j/16103009385?pwd=TjFZRDBnNkVQRlV0Znhvai9qT05tZz09#success>

Courtroom Clerk's Session

1. 10:00 AM CASE NUMBER: N26-1130
CASE NAME: MHC FINANCING LIMITED PARTNERSHIP VS> SILVANA RENGHINI
VERIFIED PETITION FOR INJUNCTIVE RELIEF PURSUANT TO CIV CODE 798.88
FILED BY:
TENTATIVE RULING:

Parties reached agreement. This has been vacated.

Law & Motion

2. 9:00 AM CASE NUMBER: L25-00802
CASE NAME: CITIBANK, N.A. VS. SANDEEP THIARA
MOT COMPEL RESPONSES INTERROGATORIES
FILED BY:
TENTATIVE RULING:

Defendant filed a Motion, on 5/15/26, to compel further discovery responses, along with a Declaration.

The Motion is unopposed.

Background

However, the Motion contains a declaration, signed by Defendant, appearing to reflect that he mailed notice of the Motion and hearing to counsel for Plaintiff on (p.10-11 of Motion). The declaration of service is not dated, nor is there a reference to the particular date on which notice was mailed.

The Declaration also has its own declaration reflecting that Defendant, himself, mailed notice of the Declaration to the Plaintiff. The declaration of service is not signed, and it is not dated. The Declaration contains no information about the date of the hearing.

On 7/29/26, Defendant filed two documents reflecting that he emailed notice of the hearing to counsel for Plaintiff.

Analysis

The moving party must provide the opposition with 16 court days of notice before the hearing on the matter. (Section 1005(b) of the CCP.)

What's more, an interested party cannot provide service by mail to the opposition. They can, apparently, do so with email service. (See Sections 1013a and 1013b of the CCP.)

However, service mail requires an extra 5 calendar days of notice; while email service requires an extra 2 court days of service. (See Sections 1013(a) and 1010.6(a)(2)(B) of the CCP.)

In the instant matter, even assuming Defendant had emailed notice of the Motion in addition to the date of hearing on 7/29, it would not have been timely for a hearing on 8/11.

Moreover, the notice reflected in the Motion, filed on 5/15, shows that it was Defendant who mailed the documents. He, though, is an interested party.

Thus, this court finds a lack of service.

Disposition

This Motion will be continued to 10/6/26, 9am.

Defendant to properly notice Plaintiff of the Motion and notice of the next hearing date.

Court will file Order.